



Deputy Commissioner
of Maritime Affairs

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SECURITY ADVISORY: 04/2011

This Security Advisory supersedes 'Security Advisory 1/2010'

SUBJECT: U.S. Coast Guard Revises Security Advisory Regarding Ports Not Maintaining Effective Anti-Terrorism Measures.

Reference: (a) USCG Port Security Advisory (3-11) - ATTACHED

Dear Owner/Operator:

Update: The U.S. Coast Guard has issued the attached *Port Security Advisory (3-11)* which takes effect for vessels that arrive in the United States on or after 10 June 2011. In *Port Security Advisory 3-11* the US Coast Guard has determined that the Union of the Comoros and the Republic of Cote d'Ivoire are the most recent additional countries not maintaining effective anti-terrorism measures in their ports and requires ships that have as one of their last five ports of call in these countries to take certain actions.

The advisory is relevant to vessels calling on the respective ports in all of the countries listed by the USCG in their Port Security Advisories and has no connection or affect on vessels that may be registered in those countries.

All vessels that visited the countries listed in paragraph B of the USCG Advisory (with exceptions noted) during their last five port calls will be boarded or examined at sea by the Coast Guard to ensure required actions were taken. Failure to properly implement the actions listed in paragraph C.1 through C.5 of the attached advisory may result in delay or denial of entry into the United States.

Vessel security actions: Effective immediately ALL Liberian registered vessels while in ports of the countries noted in the attached USCG Advisory (3-11) shall:

1. Implement measures as per the ship's security plan **equivalent** to Security Level 2 and
2. Take the required actions listed in section C of the attached advisory including attempting to execute a Declaration of Security (DOS).

Note: We have received reports that some ports have objected to a DOS indicating that a vessel is at Security Level 2 while the port has declared itself at Security Level 1. Therefore, the following guidelines, which have been confirmed with the USCG, should be followed:

1. A vessel is not required to raise its security level to level 2 when visiting the ports listed in ref (a), unless the port is at security level 2 or you receive notification from the Administration to increase to security level 2.
2. The USCG is aware of the possible negative effects and potential problems that may arise when attempting to execute a DOS, indicating the ship has implemented measures equivalent to

Security Level 2, while the port is at Security Level 1. Therefore when executing a DOS; the USCG will accept an entry indicating Security Level 1; as long as the extra measures equivalent to Security Level 2 have been noted and recorded in the ship's log.

Reminder: No vessel shall operate at a Security Level lower than that of a port facility. Additionally, the Master has the overriding authority to increase the Security Measures of the vessel at any time to protect the safety and security of the vessel.

For more information please contact the Security Department at telephone + 1 703 790 3434, email security@liscr.com; LISCAR Duty Officer + 1 703 963 6216, email dutyofficer@liscr.com

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Port Security Advisory (3-11)

A. Background:

The Maritime Transportation Security Act of 2002 (MTSA) has mandated that the United States Coast Guard evaluate the effectiveness of anti-terrorism measures in foreign ports and provides for the imposition of conditions of entry on vessels arriving to the United States from countries that do not maintain effective anti-terrorism measures (MTSA, 46 USC § 70108).

The Coast Guard has determined that the Union of the Comoros and the Republic of Cote d'Ivoire are the most recent countries not maintaining effective anti-terrorism measures in their ports. Actions required as listed in paragraphs C and D of this Port Security Advisory take effect for vessels that arrive in the United States on or after June 10, 2011, after visiting ports in the Union of the Comoros or the Republic of Cote d'Ivoire as one of their last five ports of call.

B. Countries Affected:

The Coast Guard has determined that ports in the following countries are not maintaining effective anti-terrorism measures:

Comoros

Cote d'Ivoire

Cambodia (with the exception of the Phnom Penh Autonomous Port – IMO number not listed; and Sihanoukville Autonomous Port – IMO number not listed)

Cameroon (with the exception of the Ebome Marine Terminal – CM394-0001; Quai GETMA (LAMNALCO Base) Facility – CMDLA-0005; the Société Nationale de Raffinage (SONARA) Terminal – IMO number not listed; and the Kome-Kribi 1 – CM234-0001)

Congo, Republic of the (with the exception of the Djeno Oil Terminal – IMO Number CGPNR-0007)

Cuba

Equatorial Guinea (with the exception of the ports of Ceiba – GQ362-0001/0002; K-5 Oil Center – IMO number not listed; Luba - GQLUB-0001; Punta Europa Terminal – GQ368-0001; and Zafiro Marine Terminal – GQ370-0001)

Guinea-Bissau



Indonesia (with the exception of the ports of Ardjuna Marine Terminal (British Petroleum Arco Ardjuna) – IDTPP-0001; Banjarmasin Port (Pelabuhan Khusus Batubara PT. Bahari Cakrawala Sebuku/PT. Jorong Barutama) – IDBDJ-0001/0002; Belawan Container Terminal Unit Terminal Peti Kemas (BICT) – IDBLW-0001; Belawan Multi-Purpose Terminal – IDBLW-0002; Chevron Santan Marine Terminal – IDSAT-0001; Dermaga 1, 2 and Terminal Petikemas, Port of Bitung – IDBIT-0003; Dermaga 2/ Dermaga Amoniak/Urea PT. Pupuk Kaltim – IDBXT-0002; Dermaga Samudera & Terminal Penumpang Internasional – IDSRG-0001; DUKS PT Semen Padang – IDPDG-0001; Jakarta International Container Terminal – IDTPP-0003; Jamrud Pelindo III Tanjung Perak (JPTP) – IDSUB-0011; Muara Jawa, Muara Berau Anchorage and Jetty of PT. Mahakam Sumber Jaya – IDSRI-0010; Newmont Nusa Tenggara – ID259-0001; North Pulau Laut Coal Terminal Owned By PT. Arutmin Indonesia – ID532-0001); PT. Berdikari Sair Utama Flour Mills – IDMAK-0001; PT. Chevron Pacific Indonesia – IDDUM-0002 (Formerly Caltex Oil Terminal Dumai ID258-0001); PT. Pelabuhan Indonesia I Cabang Dumai – IDDUM-0003; PT. Pelindo IV Cabang Makassar – IDMAK-0003; PT. (Persero) Pelabuhan Indonesia IV Cabang Balikpapan – IDBPN-0003; PT. Pertamina (Persero) Unit Pengolahan V Balikpapan – IDBPN-0005; PT. Persero Pelabuhan Indonesia II Cabang Padang- IDPDG-0002; PT. Pertamina Unit Pemasaran III Jakarta – IDTPP-0009; PT. Terminal Petikemas Surabaya – IDSUB-0015; Pertamina Bontang – IDBXT-0011; Pelabuhan Khusus PT. Indominco Mandiri (Bontang Coal Terminal) – IDBXT-0008; Pelabuhan Khusus PT. Multi Nabati Asahan Wajok Pontianak – IDPNK-0001; Pertamina UP II Dumai – IDDUM-0005; Pertamina UP. V Balikpapan, dermaga PT. Petrosea Tbk. Tanjung Batu Balikpapan – IDBPN-0004; Port of Tanjung Priok – IDTPP-0005; Senipah Terminal Total E & P Indonesie – ID276-0001; Terminal Petikemas Koja (KOJA) – IDTPP-0010; Terminal Petikemas Regional Harbour PT, Multi Terminal Indonesia – IDTPP-0012; Terminal Petikemas Semarang – IDSRG-0005)

Iran

Liberia (with the exception of the Firestone Facility – IMO number not listed; and Port of Monrovia – IMO Number LRMLW-0001)

Madagascar (the exception of Toamasina (also known as Tamatave) - MGTMM-0001)

Sao Tome and Principe

Syria

Timor-Leste

Venezuela



C. Actions Required by Vessels Visiting Countries Affected:

All vessels arriving to the United States that visited the countries listed in paragraph B (with exceptions noted) on or after the effective date in paragraph A, during their last five port calls must take actions 1 through 5 listed below while in the countries listed in paragraph B as a condition of entry into U.S. ports:

1. Implement measures per the ship's security plan equivalent to Security Level 2;
2. Ensure that each access point to the ship is guarded and that the guards have total visibility of the exterior (both landside and waterside) of the vessel. Guards may be:
 - provided by the ship's crew, however, additional crewmembers should be placed on the ship if necessary to ensure that limits on maximum hours of work are not exceeded and/or minimum hours of rest are met, or
 - provided by outside security forces approved by the ship's master and Company Security Officer.
3. Attempt to execute a Declaration of Security;
4. Log all security actions in the ship's log; and
5. Report actions taken to the cognizant U.S. Coast Guard Captain of the Port prior to arrival in the U.S.

Vessels that visited the countries listed in paragraph B (with exceptions noted) on or after the effective date in paragraph A, during their last five port calls will be boarded or examined by the Coast Guard to ensure the vessel took the required actions. Failure to properly implement the actions listed in paragraph C.1 through C.5 may result in delay or denial of entry into the United States.

D. Actions Required by Vessels in U.S. Ports:

Based on the findings of the Coast Guard boarding or examination, the vessels that visited the countries listed in paragraph B (with exceptions noted) on or after the effective date in paragraph A **may** be required to ensure that each access point to the ship is guarded by armed security guards and that they have total visibility of the exterior (both landside and waterside) of the vessel while in U.S. ports. The number and location of the guards must be acceptable to the cognizant U.S. Coast Guard Captain of the Port. For those vessels that have demonstrated good security compliance and can document that they took the measures called for in C.1. through C.4. above, the armed security guard requirement will normally be waived.